Table of Contents

BASIS AND PURPOSE FOR RULE 29 2

RULE 29 RESPONSIBLE GAMING AND SELF-RESTRICTION 2

30-2901 Display of responsible gaming logo. 2

30-2902 Retail gaming licensee's self-exclusion. 2

Each retail gaming licensee shall establish and maintain a self-exclusion program for patrons consistent with Regulation 30-2905. *Amended 1/14/2026* 3

30-2903 Direct marketing to individuals on the Exclusion List. *Amended 1/14/2026* 3

30-2904 Responsible advertising and promotions. *Amended 1/14/2026* 3

30-2905 Exclusion list – Duties and responsibilities. *Amended 1/14/2026* 4

30-2906 Establishment of responsible gaming best practices. *Amended 1/14/2026* 7

30-2907 Exclusion or ejection of persons from any gaming establishment. *Amended 1/14/2026* 8

These copies of the rules are provided as a convenience to the public by the Colorado Department of Revenue and do not constitute an official publication. The official version of these rules is published by the Office of the Secretary of State in the Colorado Code of Regulations and may be obtained from the Colorado Secretary of State's website.

BASIS AND PURPOSE FOR RULE 29

The purpose of Rule 29 is to specify the requirements of licensees and responsible gaming, to designate certain duties of licensees and patrons related to self-restriction, to specify requirements concerning responsible advertising and promotions and to outline the process for involuntary exclusion from retail gaming establishments. The statutory basis for Rule 29 is found in sections 44-30-201, C.R.S., 44-30-202, C.R.S., 44-30-203, C.R.S., 44-30-302, C.R.S., 44-30-502, C.R.S., 44-30-510, C.R.S., 44-30-528, C.R.S., 44-30-531, C.R.S., 44-30-827, C.R.S., 44-30-833, C.R.S., 18-20-112 C.R.S., 44-30-1701, C.R.S., 44-30-1702, C.R.S., and 44-30-1703, C.R.S. *Amended 1/14/2026*

RULE 29 RESPONSIBLE GAMING AND SELF-RESTRICTION

30-2901 Display of responsible gaming logo.

(1) Each retail gaming licensee shall display a responsible gaming logo on their website as well as prominently displayed within the retail casino, in a manner approved by the Director or Director's designee, to direct a patron to the retail gaming licensee's responsible gaming webpage or the Division's responsible gaming webpage. Retail gaming licensees shall operate under the same responsible gaming guidelines as detailed in these Rules, where applicable. Responsible gaming information shall be accessible to patrons within a licensed gaming facility or on their website and shall contain, at a minimum, the following:

(a) A prominent message, which states, "Gambling problem? Call or TEXT 1-800-GAMBLER";

(b) Information on and a link to the website and other internet resources dedicated to helping people with potential gambling problems as directed by the Commission; and

(c) A clear statement of the retail gaming licensee's policy and commitment to responsible gaming along with information to each casino's specific self-exclusion program along with information on self-exclusion through the Division or Division's website.

(2) Retail gaming licensee locations must have a policy in effect for all of its properties in addition to self-exclusion, providing opportunities for patrons to request in writing the revocation of their privileges for specific services such as:

(a) Direct gaming promotions;

(b) Player club/card privileges related to gaming;

(c) On-site check-cashing; and,

(d) Complimentaries.

(3) Retail gaming licensees with brick-and-mortar sports betting locations within the casino must make information available promoting responsible gaming and where to find assistance, including a toll-free help line number. This information shall be available and visible in sports betting areas affixed to all sports betting kiosks and at cash access devices.

30-2902 Retail gaming licensee's self-exclusion.

Each retail gaming licensee shall establish and maintain a self-exclusion program for patrons consistent with Regulation 30-2905. *Amended 1/14/2026*

30-2903 Direct marketing to individuals on the Exclusion List. *Amended 1/14/2026*

(1) A retail gaming licensee shall make all reasonable efforts to ensure that individuals on the Exclusion List do not receive direct marketing from the retail gaming licensee or marketing affiliates.

(2) A retail gaming licensee will satisfy this requirement if the retail gaming licensee and/or marketing affiliates remove the name and resident address of individuals on the Exclusion List from the list of patrons to whom direct marketing materials are sent.

(3) A Retail gaming licensee directly or through their marketing affiliates shall use the current Exclusion List provided by the Division, to prevent individuals being directly advertised to. The Exclusion List shall be used to update all direct marketing lists to ensure that individuals on the Exclusion List are not directly targeted, by direct mail, phone calls, text messages, emails, or any other form of direct communication.

30-2904 Responsible advertising and promotions. *Amended 1/14/2026*

(1) All offers and bonuses must:

(a) Include terms and conditions that are full, accurate, clear, concise, transparent, and do not contain misleading information;

(b) Have advertising materials that include any material terms and conditions for that offer or bonus and have those material terms in close proximity to the headline claim of the offer or bonus and in reasonably prominent size;

(c) Not be described as free unless they absolutely are free. If the customer has to risk or lose their own money or has conditions attached to their own money, then the offer or bonus must disclose those terms;

(d) Not be described as risk free if the customer needs to incur any loss or risk their own money to use or withdraw winnings from the risk-free bet;

(e) Not restrict the customer from withdrawing their own funds or withdrawing winnings from bets placed using their own funds; and

(2) No person may, while on the Exclusion List, redeem points, bonuses, comps or free play.

(3) Prohibition on advertising that targets underage participants:

(a) A retail gaming licensee and/or their marketing affiliates shall not target underage persons or create advertising content that is clearly meant, because of message and graphics, for an underage audience.

(b) A retail gaming licensee and/or their marketing affiliates shall not advertise on media where the majority of the demographic audience or players/performers are known to be under the legal age to gamble. This does not apply to public venues where the demographics of a normal crowd in attendance cannot be determined.

(4) Retail gaming licensees on or before October 1st each year shall submit to the Director a report that describes the efforts of the licensee in the preceding state fiscal year (July 1st through June 30th) to promote responsible gaming in the state via advertising and other promotional methods

and the licensee's plans concerning such promotional efforts in the current state fiscal year. *(Effective temp. 10/27/22, perm. 2/14/23)*

(5) Retail gaming licensees directly or through their marketing affiliates shall include a prominent message, which states, “Gambling problem? Call or TEXT 1-800- GAMBLER” on all forms of media advertisement to Colorado consumers, including but not limited to: electronic mail (email), video advertisements, digital/online advertising, television advertisements, radio advertisement, letters, pamphlets and newspaper/magazine advertisements. The written message of “Gambling problem? Call or TEXT 1-800- GAMBLER” shall appear in conspicuous and legible type in contrast by typography, layout, or color with all other printed material on the advertisement. Verbal messaging of “Gambling problem? Call or TEXT 1-800- GAMBLER” shall be audible and understandable. Advertisements that only reference restaurants and/or the hotel at a retail gaming licensee’s casino(s) and do not market gaming and/or sports betting, including gaming and/or sports betting spaces, are exempt from this provision. The words “or text” may be excluded upon the Director’s prior approval. Any gaming-related communication that will entice a Colorado consumer to gamble and any gaming-related materials shall have the prominent message of “Gambling Problem? Call or text 1-800-GAMBLER.

(a) Entice means to attract, invite, and/or promote for purposes of the provision. *Effective 1/14/2026*

30-2905 Exclusion list – Duties and responsibilities. *Amended 1/14/2026*

(1) Division Exclusion List.

The Division shall operate a program to consolidate excluded and self-excluded individuals in one Exclusion List to keep those individuals from participating in Colorado gaming. The program shall provide an Exclusion List for retail gaming licensees, Sports Betting Operations, as well as any licensed third-party vendors pre-approved by the Director or the Director’s designee which contract with a licensee. The sole purpose of the Exclusion List is to ensure timely updates of individuals that may not participate in gaming and sports betting in Colorado. The Exclusion List shall only be used for the purpose of identifying those individuals who have been excluded from gaming and those that may have excluded themselves. Licensees that receive data from the Division shall use it solely to update their database whether directly or through a Division-approved third-party vendor. The information contained in the Exclusion List updates provided to the licensees are confidential and shall only be used for the intended purpose. Limited information may be shared with affiliates and Division-approved third-party vendors for the purpose of ensuring individuals on the Exclusion List do not receive direct marketing. It is a violation for any licensee to use the confidential data in any other way. The Director shall determine how each licensee, league, or person interacts with the database.

(a) Retail gaming licensees shall, make available a self-exclusion application to a patron requesting to self-exclude.

(b) The retail gaming licensee shall provide either a hard copy of the Division’s self-exclusion application, provide a dedicated computer on the licensee’s property where a patron can access the Division's self-exclusion website directly to request self-exclusion, or direct the patron to the Division’s self-exclusion website.

(c) The Division shall provide a list of excluded persons (the Exclusion List) to retail licensees. The Exclusion List will be in a format determined by the Director or the Director’s designee, updated as needed, and sent electronically. All new and existing licensees shall update all new excluded persons within their own database or through a Division approved third-party vendor within three business days, Monday through Friday, excluding state holidays, from receiving an updated Exclusion List from the Division.

Licensees must review the Exclusion List prior to issuing a new or replacement players' club card to any individual.

(d) A licensed third-party vendor may view and use the confidential information contained in the Division's Exclusion List, so long as the third-party vendor has complied with the following:

(i) The third-party vendor has entered into a contract or written agreement with a licensee outlining the third-party vendor's access and use of the confidential information contained in the Division's Exclusion List.

(ii) The third-party vendor has completed and submitted a form prepared by the Director or the Director's designee. As part of the form, the third-party vendor must disclose all retail gaming licensees, Sports Betting Operations that it is providing services related to the Division's Exclusion List. As part of the form, the third-party vendor must affirmatively agree not to disclose the confidential information contained in the Division's exclusion List and to only use such confidential information for its intended purpose.

(iii) The third-party vendor may not access and/or use the confidential information contained in the Division's Exclusion List until approved in writing by the Director or the Director's designee.

(iv) The third-party vendor must immediately inform the Division of any changes to its address, any changes to its contract or written agreement with a retail gaming licensee and/or Sports Betting Operation, or its cessation of services relating to the provision of this regulation within five (5) calendar days of the changes or cessation of services.

(v) The third-party vendor must immediately disclose to the Division within five (5) calendar days any disclosure of the confidential information contained in the Division's Eexclusion Llist and database or inappropriate use of such confidential information.

(e) In the event the third-party vendor violates any or all of the requirements in Rule 2905 (d), the licensee with which the third-party vendor has contracted and/or entered into a written agreement may be subject to discipline in accordance with the provisions of Article 30 of Title 44, C.R.S., and/or the Gaming and Sports Betting rules and regulations under 1 C.C.R. 207-1 and 1 C.C.R. 207-2 respectively.

(2) Exclusion List inclusion.

(a) The following persons shall be included and maintained in the, Exclusion List updated and transferred to retail gaming licensees, Sports Betting Operations, and licensed third-party vendors approved by the Director or the Director's designee which contract with a licensee or a Sports Betting Operation:

(i) Individuals that have voluntarily self-excluded from any operator, retail casino or through the Division.

(ii) Individuals who are required by the Commission to be excluded or ejected from licensed gaming establishments, to the extent that those individuals are listed in the Division's Exclusion List.

(b) Individuals on the Exclusion Llist may not participate or collect winnings from gaming in Colorado. For purposes of this provision "winnings" only applies to a person self-excluded

and/or has been added to the Exclusion List. Individuals on the Exclusion List, shall not be able to redeem points, bonuses, comps or free play. The applicable operator or licensee will retain or keep any winnings of a person on the Exclusion List as an unclaimed/unpaid jackpot. Individuals on the Exclusion List forfeit any money wagered but may retain any remaining funds that have not been actively wagered in casino games or sports wagering after being placed on the Exclusion List.

(i) Retail licensee and/or operators must check whether a patron is on the exclusion list during the following transactions: comp issuance, reward item issuance, cage transactions requiring ID, PIN change, jackpot pay out, issuing/reissuing a players card, front money opening a players card account. *Effective 1/14/2026*

(ii) Retail licensee and/or operators must respond to any alerts their system might provide, including but not limited to, audible and visual alerts that indicate a patron is on the exclusion list. Examples of alerts may include but are not limited to alerts from the player management systems, slot systems, cage systems, or surveillance systems. Systems that have the capability to provide the alert are required to utilize it, both audible and visual versions, if available. *Effective 1/14/2026*

(A) A response includes: *Effective 1/14/2026*

(1) Individuals on the Exclusion List who continue to enter a retail gaming establishments and participate in gambling will be escorted out of the retail gaming establishments and may be subject to prosecution. *Effective 1/14/2026*

(2) Individuals on the Exclusion List are prohibited from being in the licensed premises where limited gaming is conducted at a retail gaming establishment. Retail gaming licensees are required to report each incident to the Division. *Effective 1/14/2026*

(c) A retail gaming licensee that allows individuals on the Exclusion List to gamble may be subject to disciplinary action in accordance with the provisions of Article 30 of Title 44, C.R.S, and/or the Gaming and Sports Betting rules and regulations under 1 C.C.R. 207-1 and 1 C.C.R. 207-2. *Effective 1/14/2026*

(3) Self-Inclusion on the Exclusion List. *Amended 1/14/2026*

(a) Individual self-exclusion means that an individual has made a conscious voluntary effort to exclude themselves, from all forms of gaming including limited gaming and sports betting under the regulatory purview of the Commission and the Division. Self-exclusion may only be accomplished by an individual acting in their own interest, in the following ways:

(i) Self-exclusion by an individual through the Division. An individual self-excluding either in person or through a web-based application. All self-exclusions by individuals through the Division, either in person or web-based, will have their identity verified prior to being included on the Exclusion List.

(ii) Self-exclusion from a retail gaming licensee (casino). An individual requesting self-exclusion from a casino shall fill out a self-exclusion form provided by the casino.

(b) Individuals wishing to self-exclude in person or through the Divisions web-based application shall fill out all required information on the form. Incomplete forms may not be processed.

(c) Individuals that self-exclude from gaming corporations that have gaming operations in other states may be included on their corporate exclusion list and may be included in other state exclusion programs. An individual self-excluding in Colorado shall be informed prior to being place on a corporate exclusion list.

(4) Self-Exclusion period.

(a) Individuals who voluntarily self-excluded shall select the period of exclusion to include:

(i) One (1) year

(ii) Three (3) years; or

(iii) Five (5) years

(b) An individual who is on the Exclusion List may submit a request, to the Division, to increase the minimum length of exclusion.

(5) Removal from the Exclusion List after self-exclusion.

(a) No person is automatically removed from the Exclusion List when the selected or directed period ends. Individuals that have self-excluded and are on the Exclusion List must file the Request for Removal from the Exclusion List form with the Division prior to being removed from the Exclusion List.

(b) Individuals that are on the Exclusion List and have not completed their self-selected period of self-exclusion may petition the Director for removal from the list. The Director or the Director's designee may require self-evaluation or evaluation by a professional to ensure the problem gambling or financial issues that led to the self-exclusion have corrected themselves. Removal from the Exclusion List prior to the self-selected time period is at the complete discretion of the Director. If an individual's petition to be removed from the Exclusion List prior to the self-selected exclusion period is not approved by the Director, the individual may not re-petition the Director again for the period of one year from the date of the Director's decision, regardless of any subsequent petition(s) or proceeding(s) under Regulation 30-208.

30-2906 Establishment of responsible gaming best practices. *Amended 1/14/2026*

(1) Prior to beginning a retail gaming activity, a retail gaming licensee must submit for approval to the Division its strategy for the implementation of a responsible gaming program. On or before October 1st each year, retail gaming licensees shall submit to the Division any updates to its strategy for the implementation of a responsible gaming program.

(2) The strategy for the implementation of a responsible gaming program shall include, but is not limited, to detailed explanations of the following: *Effective 1/14/2026*

(a) The options available for patrons to set self-directed limits on all aspects of their deposits, withdrawals, limits on betting and time frames those limits take place.

(b) All responsible gaming tools that are at the players disposal.

(c) The staffing level, including the lead staff position for the responsible gaming program, staffing positions dedicated to responsible gaming, employee education and outreach to players identified as problem gamblers or players that are at risk or show signs of problems gaming.

(i) The lead staff position or their designee shall be required to provide responsible gaming training for team members who directly engage with gaming patrons continually and/or as needed with the turnover of team members.

(d) A detail of the use of player data and technology to aid in identifying potential problem gamblers. Detail should be provided on how the operators or a contracted third party's technology will provide automated triggers on potential problem gamblers. The list should provide detail on what triggers are being identified and how the operator has identified those as critical matrices to follow. Additionally, what plans the operator has to continually update and learn the best way to identify problem gamblers on their site.

(e) The levels of intervention and education provided to identified at risk players. Provide examples of materials and/or media used for intervention and education.

(f) Internal controls to identify any individuals on the Exclusion List who engage in gaming and sports betting activity, controlled by the licensee. Internal controls should include prohibiting individuals on the Exclusion List from engaging in gambling and controls in place to prevent collection of winnings by individuals on the Exclusion List and,

(g) Any information relevant to the company as a whole on a strategic direction for responsible gaming.

(3) The licensee will ensure compliance with its own responsible gaming policies and procedures as well as the plan provided to the Division. A licensee's failure to adhere to its own responsible gaming policies and procedures and its plan provided to the Division may subject the licensee to regulatory discipline.

(4) The licensee shall audit the entirety of the patron management system or any system or database that houses excluded patron information twice each year (first between June 1st and July 1st and second between December 1st and January 1st) for duplicate accounts to ensure that individuals on the Exclusion List are flagged appropriately. A licensee may submit a request to the Division approval of an alternative audit schedule, which is subject to approval by the Director or the Director's designee.

(a) The licensee will audit the patron management system or any system or database that houses excluded patron information is accessed during any gaming interaction that required identification.

(i) Examples include: cash advances, check cashing, PIN number changes, taxable accumulated credits or free play, front money, cash club transactions, audible and visual alerts, and any gaming transaction requiring an ID.

30-2907 Exclusion or ejection of persons from any gaming establishment. *Amended 1/14/2026*

(1) The Division shall maintain individuals who are involuntarily excluded and may be ejected from licensed gaming establishments on the Exclusion List. Since involuntary excluded individuals are excluded from gaming activities under section 44-30-1703 (1)(a)(I)(B), C.R.S., the Division will share involuntary excluded individuals on the Exclusion List with retail gaming licensees and sports betting operators and will post the list on the Division's and/or the Commission's website.

(2) Inclusion of Involuntary Excluded Persons.

(a) The Division may initiate exclusion proceedings against an individual where it determines there is cause to believe the individual should be excluded and ejected from licensed gaming establishments under Article 30 of Title 44, C.R.S. Exclusion proceedings, as used herein, shall mean those procedures undertaken by the Division and the Commission to place individuals for involuntary exclusion on the Exclusion List. The Division shall initiate exclusion proceedings by filing a petition with the Commission. The petition must include the following information:

(i) The individual's name;

(ii) The individual's date of birth;

(iii) Any known aliases of the individual;

(iv) A picture of the individual, if available;

(v) A physical description of the individual;

(vi) A detailed description of why the individual should be excluded from all licensed gaming establishments; and

(vii) The requested effective date of an exclusion order.

(b) Upon receipt of a petition from the Division, the Commission shall consider the petition at a regularly scheduled or emergency public meeting, set at the discretion of the Commission chair or vice-chair.

(i) Following receipt of the petition and/or during its consideration of the petition, the Commission may request any additional information from the Division; any licensees with relevant information as determined by the Commission; or the individual at issue. The Commission's consideration of the petition is not an evidentiary hearing and any additional information requested by the Commission may only be offered or considered at the discretion of the Commission.

(c) In determining whether to add an individual for Involuntary Exclusion, the Commission may consider any of the following:

(i) Whether the individual's presence poses a threat to the interest of the State or licensed gaming, including members of the public;

(ii) Whether the individual has a prior conviction of a felony, a misdemeanor involving moral turpitude, or a violation of the laws or gaming rules of any other state, the United States or any of its possessions or territories, or an Indian tribe;

(iii) Whether the individual has violated, attempted to violate, or was involved in a conspiracy to violate the provisions of Article 30 of Title 44, C.R.S, relating to:

(A) The failure to disclose an interest in a gaming establishment for which the individual must obtain a license or to make disclosures to the Commission; or

(B) Intentional evasion of fees or taxes;

(iv) Whether the individual has a reputation that would adversely affect public confidence and trust that the gaming industry is free from criminal or corruptive influences;

(v) Whether the individual has prior exclusion(s) or ejection(s) from a gaming establishment under the laws or gaming rules of any other state, the United States or any of its possessions or territories, or an Indian tribe; or

(vi) Whether the individual is a career or professional offender or associates of career or professional offenders and any others as defined by rule of the Commission.

(d) Following receipt of the petition and consideration of above, the Commission shall either dismiss the petition or find the individual should be placed on involuntary exclusion.

(e) Where the Commission finds the individual should be placed on involuntary exclusion, the Commission shall:

(i) Determine the duration of the individual's inclusion on involuntary exclusion.

(A) When the duration is not specifically designated, the default duration is permanent.

(ii) Place an individual on involuntary exclusion to include the following:

(A) The individual's name;

(B) The individual's physical description;

(C) A picture of the individual, if available;

(D) The effective date of the individual's inclusion; and

(E) The expiration date of the individual's inclusion.

(f) Unless a request for a hearing is submitted under subsection (3) below, the individual's exclusion has an effective date of thirty-five (35) calendar days after personal service of the Commission's written order/notice, the date of service listed on a certified mail sent to the last-known address of the individual, or the date of publication in one or more official newspapers in Teller and Gilpin counties. Licensees must exclude or eject from the licensed premises any involuntarily excluded individual on the Exclusion List upon the effective date of the individual's exclusion.

(3) Contesting placement for involuntary exclusion.

(a) Upon the Commission adding an individual, including name and description, for involuntary exclusion, the Commission shall serve a written notice of that action upon the individual by personal service, by certified mail sent to the last-known address of the individual, or by publication in one or more official newspapers in Teller and Gilpin counties.

(b) An individual placed for-involuntary exclusion may petition the Commission for a hearing within thirty (30) calendar days of personal service of the Commission's written order/notice, the date of service listed on a certified mail sent to the last-known address of the individual, or the date of publication in one or more official newspapers in Teller

and Gilpin counties. The petition for hearing must be submitted in writing to 1707 Cole Blvd., Suite 300, Lakewood, CO 80401 and must be received by the Commission within the thirty (30) day period to be considered. The Commission may delegate the evidentiary hearing to one of its members or an administrative law judge or conduct the hearing as a whole at its discretion.

(c) If an individual requests a hearing within thirty (30) calendar days, the individual's name will not be added for involuntary exclusion to the Exclusion List pending the outcome of the evidentiary hearing.

(d) If the individual fails to appear for the hearing, the petition for hearing is deemed abandoned and the information from subsection (2)(e)(ii) shall be added to the Exclusion List.

(e) If an individual fails to request a hearing within thirty (30) calendar days, the placement of the individual for involuntary exclusion on the Exclusion List becomes a final agency order.

(4) Placement for involuntary exclusion on an emergency basis.

(a) The Division may initiate exclusion proceedings against an individual on an emergency basis. The Division shall supplement the petition with a detailed description of why placing the individual for involuntary exclusion on the Exclusion List on an emergency basis is necessary to avoid danger to the public safety and that public confidence and trust may only be maintained if the individual is listed for involuntary exclusion on the Exclusion List.

(i) With respect to the finding of danger to public safety, the Commission shall consider whether an individual has been listed on the list of persons to be excluded or ejected under the laws and gaming rules of any other State; the United States or its territories or possessions; or an Indian tribe.

(b) Petitions for placing individuals for involuntary exclusion on the Exclusion List on an emergency basis may be considered by the Commission at a regularly scheduled meeting or emergency meeting, set at the discretion of the Commission chair or vice-chair.

(c) Upon the Commission placing the name and description of an individual for involuntary exclusion on the Exclusion List on an emergency basis, the Commission shall serve a written notice of that action upon the individual by personal service, by certified mail sent to the last-known address of the individual, or by publication in one or more official newspapers in Teller and Gilpin counties.

(i) An individual placed for involuntary exclusion on the Exclusion List on an emergency basis may petition the Commission in writing and/or email for a stay. The petition shall include an explanation of why a stay is appropriate and why the individual should not be added to the Exclusion List on an emergency basis. The Commission chair or vice-chair shall determine whether or not to grant the stay pending the Commission' consideration of the issue under paragraph (4)(d).

(d) Within thirty (30) days after the placement of the name and description of an individual for involuntary exclusion on the Exclusion List on an emergency basis, the Commission shall consider whether to make the emergency listing permanent by setting the matter for consideration by the Commission in accordance with the process detailed in paragraphs (2) through (3) above with the exception of paragraph (3)(c).

(i) An emergency listing must be vacated if the Commission determines that the individual should not have been placed for involuntary exclusion on the Exclusion List.

(ii) If the Commission determines the individual should remain on the Exclusion List for involuntary exclusion, the individual will remain on the Exclusion List without being subject to the thirty-five (35) calendar day delay.

(5) Individuals placed for involuntary exclusion on the Exclusion List are prohibited and excluded from entering a licensed gaming establishment. If an individual placed for involuntary exclusion on the Exclusion List is found gambling, wagering or sports betting at any licensed gaming establishment, that individual shall be ejected from the licensed premises and may be subject to prosecution. Retail gaming establishments are required to report each incident to the Division. The individual is not entitled to recover any jackpots or money wagered. Any money not-yet wagered will be returned to the individual.

(6) Removal from involuntary exclusion.

(a) An individual placed for involuntary exclusion or through a legal representative on the Exclusion List may petition the Commission for removal from involuntary exclusion after five (5) years of the effective date of the individual's placement on the list.

(b) The petition must include the following:

(i) The petitioner's name;

(ii) Date or approximate date of the effective date of the petitioner's placement on the Involuntary Exclusion List;

(iii) The facts and circumstances which give rise to the request for removal from the Involuntary Exclusion List, including but not limited to an explanation why the reasons for placement on the Involuntary Exclusion List are no longer applicable;

(iv) Signature of petitioner; and

(v) Address of petitioner.

(c) Upon receipt of a petition, the Commission may request from the petitioner any additional information it requires for the issuance of its order. Following receipt of the petition, the Commission must either dismiss the petition, consider the matter at a regularly scheduled public meeting set at its discretion, or issue its decision within sixty (60) calendar days where no additional information is requested or where such additional information is promptly provided. The Commission will deny a petition where additional information has been requested and has not been provided by a date set by the Commission.

(d) If the Commission considers the matter at a regularly scheduled public meeting, the matter will be considered a decision item not an evidentiary hearing, and the Commission may receive comments and presentations from the petitioner, Division representatives and/or members of the public solely at the Commission's discretion.

(7) A retail gaming establishment that allows individuals who have been involuntarily excluded by the Commission to gamble may be subject to disciplinary action. *Effective 1/14/2026*

(8) For purposes of this provision, "gaming activities" means limited gaming and sports betting. *Effective 1/14/2026*

(Rule 29 effective temp. 10/27/22, perm. 2/14/23. Amended 3/16/24)